

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

CIVIL REVISION NO.1011 OF 2013

Md. Kenai Gazi

----- Pre-emptee-Respondent-Petitioner

=Versus=

Noor Mohammad and others

..Pre-emptor-Appellant-Opposite Parties

Mr. Bivash Chandra Biswas, Advocate

----- For the Petitioner

Mr. Md. Abdur Rouf, Advocate

----- For the Opposite Party No.1

Heard on 20.02.2018 and

Judgment on 14.03.2018

At the instance of the present pre-emptee-respondent-petitioner, Md. Kenai Gazi, this Rule has been issued calling upon the opposite party No.1 to show cause as to why the impugned judgment and order dated 19.02.2013 passed by the learned Additional District Judge, 2nd court, (In-charge), Satkhira in Misc. Appeal No.27 of 2007 allowing the appeal and setting aside the judgment and order dated 19.03.2007 passed by the learned Assistant Judge, Kaliganj, Satkhira in Misc. Case No.48 of 2002 should not be set aside.

The relevant facts for disposal of this Rule, *inter-alia*, are that the present-opposite party No.1 as the pre-emptor filed the Misc. Case No.48 of 2002 under Section 96 of the State Acquisition & Tenancy Act in the court of the Assistant Judge, Kaliganj, Satkhira against the present-petitioner and others. The application of the case contains that

the present-opposite party No.2 as the vendor sold 25 decimals of land by a sale deed dated 23.07.2002 to the present-petitioner without serving any notice of the said transfer and the present-opposite party No.1 was a co-sharer by inheritance upon the joth land appertaining to Dag No.776, S.A. Khatian No.179, Mouja Gobindapur, Police Station-Kaliganj, Satkhira, therefore, the present-preemptor-opposite party No.1 accrued a right under the provision of law upon the case land.

The present pre-emptee-petitioner as the opposite party No.1 contested the case by filing a written objection denying the statements made in the application. It is further contended that the case was not maintainable and barred by waiver and acquiescence and also by limitation period. The case land originally belonged to one Asiruddin Tarafder and others. The present-opposite party No.2 as the vendor of the case land got the property by way of inheritance who proposed to sale the land to the preemptor and other co-sharers for purchasing the case land but all of them declined to purchase the same. On request of the vendor the present-pre-emptor-opposite party No.1 settled the sale of the case land to any other person, in particular, the present-pre-emptee-petitioner. At the mediation of the pre-emptor the consideration money was fixed at Taka 60,000/- in presence of Mohammad Ali Tarafder, Sail Uddin, Rashed, Karim and others the negotiation to place. On receipt of money possession was handed over to the present-pre-emptee-petitioner on 02.07.2002. Since getting the possession of the case land, the present-

preemptee-petitioner constructed a building at the cost of Taka 2,15,716/- and also dug a pond in the case land. Therefore, the present-preemptor-opposite party No.1 was fully aware of the sale of the case land by the registered sale deed dated 23.07.2002, thus, no right of preemption was accrued by the present-preemptor-opposite party No.1.

After hearing the parties and considering the evidence adduced and produced by the respective parties the trial court dismissed the case by his judgment and order dated 19.03.2007. Being aggrieved the present-preemptor-opposite party No.1 as an appellant preferred the Miscellaneous Appeal No.27 of 2007 in the court of the learned District Judge, Satkhira which was heard on transfer by the learned Additional District Judge, 2nd court (In-charge), Satkhira who allowed the appeal by his judgment and order dated 19.02.2013. This revisional application has been filed under Section 115(1) of the Code of Civil Procedure challenging the legality of the impugned judgment and order passed by the learned appellate court below and the present Rule was issued thereupon.

Mr. Bivas Chandra Biswas, the learned Advocate, appearing for the present-pre-emptee-petitioner submits that it was the case of the preemptee that the preemptor negotiated to purchase the case land and he himself finalized the price of the land and at that time Mohammad Ali Tarafder, Sail Uddin, Rashed, Karim and others were present and this fact was well proved by O.P.Ws.2 and 3 and there was no major

discrepancy in their depositions but the learned court of appeal below without considering the evidence of O.P.W.3 committed an error in holding that he could not prove that the preemptor was present at the time of negotiation and fixed the price, as such, the impugned judgment and order has resulted in an error in the decision occasioning failure of justice, as such, the Rule should be made absolute.

The learned Advocate also submits that the pre-emptee after purchase the case land a building was constructed of four rooms and a katcha kitchen before filing of the preemption case at the expense Taka 2,15,716/- and this fact was well proved by O.P.W.1, O.P.W.4 and the report of Advocate Commissioner but the learned appellate court below without considering the evidence of O.P.W.1 and O.P.W.4 and report of the Advocate Commissioner committed an error by allowing the preemption case, as such, the Rule should be made absolute.

He also submits that the preemptor was fully aware of sale of the case land but declined to purchase the land, as such, the case suffers from the principle of waiver and acquiescence, therefore, subsequently cannot be estopped the sale of the case land under the principle of equity, as such, the Rule should be made absolute.

The Rule has been opposed by the present-preemptor-opposite party No.1.

Mr. Md. Abur Rouf, the learned Advocate appearing for the present-preemptor-opposite party No.1 submits that admittedly the

preemptor was a co-owner by way of inheritance, as such, before sale of the case land by the present-vendor-opposite party No.2 was required to serve a notice upon all other co-sharers under Section 89 of the Act, 1950 but no notice was served upon the preemptor and the present-preemptor had no knowledge about the sale of the case land to a stranger, as such, a right of preemption was accrued by operation of Section 96 of the Act, 1950 but the present-petitioner by misleading the court obtained the present Rule, therefore, the Rule is liable to be discharged.

The learned Advocate further submits that the present-preemptor-opposite party No.1 never present in any settlement of sale or in any negotiation between the parties, accordingly, Abdul Kader (opposite party No.1) never mentioned about the name of the present-preemptor's presence along with Rashed, Karim and Sohel, therefore, no question arises for an application of waiver and acquiescence by the present-opposite party No.1, therefore, the present-opposite party No.1-preemptor after complying all the required provision of law filed the instant case within the limitation period prevailing prior to the amendment of Section 96 of the Act, 1950, thus, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the revisional application filed under Section 115(1) of the Code of Civil

Procedure along with the Annexures therein, in particular, the impugned judgment and order passed by the appellate court and also considering the materials in the lower court records, it appears to me that the present-petitioner-opposite party No.1 as the preemptor filed a case claiming right of preemption under Section 96 of the State Acquisition and Tenancy Act, 1950 (before amendment the year of 2006). It further appears that there are some admitted positions between the parties, which are the present-opposite party No.2 was a co- owner of the same joth and the present- opposite party No.2 sold the land to the present-preemptee-petitioner on 23.07.2002 by a registered sale deed.

However, there are some disputes between the parties which caused the present-opposite party No.1 to file the case claiming that no required notices were served upon the preemptor before the sale by a co-sharer to a stranger being the present-petitioner as required under Section 89 of the Act, 1950.

In this regard, I have carefully examined the documents produced by the parties, in particular, the depositions of P.Ws and O.P.Ws as the witnesses in support of the respective parties. In particular, the vital witnesses in this case was O.P.W.1 being Abdul Kader who in his deposition stated that his father Kanai Gazi, Md. Rashed, Abdul Karim were present in the negotiation of sale of the case land to the petitioner. He maintained the said settlement, in cross-examination, by stating that the preemptor of opposite party No.1 was present, the deposition of

O.P.W.2, Mohammad Ali Tarafder and also the opposite party No.3, Sailuddin who supported the case of the present-preemptee-petitioner. On the other hand, P.W.1 Noor Mohammad categorically deposed that he was not at all aware of sale of the case land, however, the present-preemptor-opposite party No.1 cannot produce any other witnesses in support of this case as to the requirement for right of preemption e.g. the service of notice under Section 89 of the Act, 1950 or alternatively knowledge of the sale. On examination of the above deposition it transpires to me that the sale of the case land by deed dated 23.07.2010² was executed by and between the present-vendor-opposite party No.2 and the present-pre-emptee-petitioner, after process of an agreement by way of offer and acceptance for sale among the parties including the present-preemptor.

In this regard, I find that Section 96 of the act laid down the provision of knowledge as an alternative requirement for notice because of socio economic condition of our country. The sale of land in the instant case went through a process of negotiation, meeting, offer and counter offer as well as discussion among the parties including the present-preemptor-opposite party No.1 who consented to sale to the present-petitioner by fixing the price of the case land, therefore, attending in a meeting or even aware of a meeting for sale without being presence by himself would also satisfy the requirement of know by the preemptor for selling of the land. In view of the above, the present-

preemptor could not claim a right of preemption by filing a case within the stipulated period of time instead of purchasing the land during the period of negotiation or settlement of sale from the vendor at any terms and conditions. Accordingly, the preemptor cannot keep his eyes and ears closed about a meeting or discussions for sale, as such, right of preemption could not have accrued by the present-preemptor-opposite party No.1.

Now, I am inclined to examine the impugned judgment and order passed by the courts below. The trial court considered the evidence both documentary and deposition as the witnesses of the parties came to a lawful conclusion to dismiss the case on the basis of the following finding:-

‘ছা-য়ল কর্তৃক নালিশী জমির দরদাম শির হইবার সময় সেখা-ন ও পি ডব্লিউ-২ মোহাম্মদ আলী তরফদার ও ওপি ডব্লিউ-৩ হৈয়ল উদ্দিন তরফদার উপস্থিত ছি-লন। তাহারা তাহা-দর জেরা ও জবানবন্দি-ত বলিয়া-ছন যে, ছা-য়ল মধ্যস্থতাকারী হিসা-ব নালিশী জমির দরদাম শির করিয়াছি-লন। এব্যাপা-র ছা-য়লপক্ষ বিস্তর জেরা করিয়াও বিপরীত কোন তথ্য আবিষ্কার করি-ত পা-রন নাই। সুতরাং দেখা যাই-ত-ছ যে, ছা-য়ল নালিশী জমি বিক্র-য়র বিষ-য় প্রত্যক্ষ ভূমিকা রাখিয়াছি-লন এবং সেই কার-ণ নালিশী জমি ১ নং তরফদারীর নিকট বিক্র-য়র বিষ-য় তিনি পূর্বাপর অবহিত ছি-লন প্রতীয়মান হয়।

On the other hand, the learned appellate court after misreading and non consideration of the vital evidence and the circumstantial evidence required under Section 96 of the Act came to a wrongful conclusion to allow the appeal on the basis of the following finding:-

ছা-য়ল negotiator হইয়া থাকি-ল অবশ্যই তর্কিত দলি-ল ছা-য়-লর সাক্ষী পরিচিতি হওয়া স্বাভাবিক ছিল। যে-হতু দরখাস্তকারী (ছা-য়ল) দলি-ল কোন সাক্ষী পরিচিতি ন-হ। তদ-হতু তিনি মধ্যস্থতা করিয়া-ছেন ইহা প্রমানিত হয় না। ও, পি, ডাব্লিউ-১ আব্দুল কা-দর উ-ল্লাখ ক-রন যে, মধ্যস্থতার সময় রশিদ, করিম ও ছহিলউদ্দিন উপস্থিত ছিল। সেখানে নুর মোহাম্মদ এর উপস্থিতির কথা বলেন নাই। ও পি ডাব্লিউ-২ জেরায় ব-লন যে, তিনি যাইয়া দে-খন যে, রশিদ, করিম ও না-জম দরদাম করি-ত-ছ। উক্ত স্বাক্ষী ও ছা-য়-লর উপস্থিতির কথা উ-ল্লাখ ক-রন নাই। দেখা যায় যে, ছা-য়ল নালিশী জমি বেচা-কনার বিষ-য় মধ্যস্থতা করিয়া-ছেন এ প্রমান মৌখিকভা-ব কিংবা দালিলীক ভা-ব তরফছানীপক্ষ -দখাই-ত পা-রন নাই।

In view of the above discussions and after perusal of the impugned judgment and order passed by the learned courts below, I consider that the learned trial court committed no error of law by dismissing the miscellaneous case by his judgment and order but the learned appellate court below committed an error of law by allowing the appeal because he was under an obligation to controvert the finding of the learned trial court which he failed by reversing the judgment. Accordingly, the learned appellate court below committed an error of law by reversing the judgment of the trial court. I am, therefore, inclined to interfere into the impugned judgment and order passed by the learned appellate court.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The ad-interim order of stay at the time of issuance of the Rule upon the operation of the impugned judgment and order dated 19.02.2013 passed by the learned Additional District judge, Court No.2, (In-charge), Satkhira in the Miscellaneous Case No.27 of 2002 is hereby recalled and vacated.

The Section is directed to communicate this judgment and order to the court concern immediately and also the Section is directed to send down the lower courts' record at once.